

ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ ගැසට් පත්‍රය

අති විශේෂ

The Gazette of the Democratic Socialist Republic of Sri Lanka EXTRAORDINARY

අංක 2107/45 - 2019 ජනවාරි මස 25 වැනි සිකුරාදා - 2019.01.25

No. 2107/45 - FRIDAY JANUARY 25, 2019

(Published by Authority)

PART I : SECTION (I) — GENERAL

Government Notifications

IMPORTS AND EXPORTS (CONTROL) ACT, No. 1 OF 1969

REGULATIONS made by the Minister under Section 20 read with Subsection (3) of Section 4 and Section 14 of the Imports and Exports (Control) Act, No. 1 of 1969 as amended by Act, No. 48 of 1985 and No. 28 of 1987.

MALIK SAMARAWICKRAMA,

Minister of Development Strategies and International Trade.

Colombo,
24th January 2019.

Regulations

These Regulations may be cited as the Imports and Exports (Control) Regulation No. 01 of 2019 and shall be effected from 28th January, 2019.

The Regulations published under *Gazette (Extraordinary)* No. 2079/70 dated 13th July 2018 and *Gazette (Extraordinary)* No. 2083/37 dated 10th August 2018 are hereby repealed.

A. VEHICULAR EXHAUST EMISSION STANDARDS

- 2.(a) All motor vehicles being imported into Sri Lanka classifiable under the HS codes specified in the Column III of the Schedule I shall comply with Vehicular Exhaust Emission Limits published in the Third Schedule of the *Gazette (Extraordinary)* No. 2079/42 dated 12.07.2018 **OR** the Fifth Schedule of the *Gazette (Extraordinary)* No. 2083/3 dated 06.08.2018, issued under the National Environment Act, No. 47 of 1980 as amended from time to time.

- (b) However, compliance with Vehicular Exhaust Emission Limits shall not be required for all Electric Vehicles.



SCHEDULE I: VEHICULAR EXHAUST EMISSION STANDARDS

<i>I</i>	<i>II</i>	<i>III</i>
<i>No.</i>	<i>HS Heading</i>	<i>HS Codes Subject to Emission Standards</i>
01	87.01	8701.20.10, 8701.20.20
02	87.03	HS Codes classified under HS Heading 87.03 except following HS Codes 8703.10.19, 8703.10.29, 8703.21.62, 8703.40.21, 8703.40.22, 8703.50.21, 8703.50.22, 8703.60.21, 8703.60.22, 8703.70.21, 8703.70.22, 8703.21.64, 8703.21.73, 8703.40.25, 8703.40.26, 8703.50.25, 8703.50.26, 8703.60.25, 8703.60.26, 8703.70.25, 8703.70.26
03	87.02,87.04,87.05,87.11	HS Codes classified under HS Headings 87.02,87.04,87.05,87.11

B. SAFETY MEASURES / STANDARDS

- 3.(a) All motor vehicles being imported into Sri Lanka classifiable under the HS codes specified in the Column IV of the Schedule II shall comply with Safety Measures/ Standards specified in the Column III of the Schedule II.
- (b) ABS Technology shall not be applicable for passenger vehicles classifiable under the HS codes specified in 2 (ii) of Column IV of the Schedule II which are imported based on the Letters of Credit (LCs) established on or before 30th June 2020 and cleared from Sri Lanka Customs on or before 31st December 2020

However, any vehicles under the same classification imported based on the Letters of Credit (LCs) established on or before 30th June 2020 and cleared from Sri Lanka Customs after 31st December 2020 or imported based on Letters of Credit (LCs) established after 30th June 2020 shall comply with both ABS and Seat Belts.

- (c) ABS Technology shall not be applicable for cargo vehicles classifiable under the HS codes specified in 3 (iii) of Column IV of the Schedule II which are imported based on the Letters of Credit (LCs) established on or before 01st September 2019 and cleared from Sri Lanka Customs on or before 31st December 2019.

However, any vehicles under the same classification imported based on the Letters of Credit (LCs) established on or before 01st September 2019 and cleared from Sri Lanka Customs after 31st December 2019 or imported based on Letters of Credit (LCs) established after 01st September 2019 shall comply with both ABS and Seat Belts.

SCHEDULE II: SAFETY MEASURES / STANDARDS

I	II	III			IV
No.	HS Heading	Safety Measure/ Standard			HS Codes Subject to Safety Measures / Standards
		Air Bags	Seat Belts	ABS	
01	87.02	C	C	C	8702.10.12, 8702.10.13, 8702.10.19, 8702.10.21, 8702.10.29, 8702.10.32, 8702.10.33, 8702.10.39, 8702.10.41, 8702.10.49 8702.20.11, 8702.20.12, 8702.20.19, 8702.20.21, 8702.20.29, 8702.20.31, 8702.20.32, 8702.20.39, 8702.20.41, 8702.20.49 8702.30.11, 8702.30.12, 8702.30.19, 8702.30.21, 8702.30.29, 8702.30.31, 8702.30.32, 8702.30.39, 8702.30.41, 8702.30.49 8702.40.11, 8702.40.12, 8702.40.19, 8702.40.21, 8702.40.29, 8702.40.31, 8702.40.32, 8702.40.39, 8702.40.41, 8702.40.49 8702.90.12, 8702.90.13, 8702.90.19, 8702.90.21, 8702.90.29, 8702.90.32, 8702.90.33, 8702.90.39, 8702.90.41, 8702.90.49
02 (i)	87.03	C	C	C	HS Codes classified under HS Heading 87.03 except HS Codes in 2(ii) of Column IV and following HS Codes; 8703.10.11, 8703.10.19, 8703.10.21, 8703.10.29 8703.21.30, 8703.21.40, 8703.21.51, 8703.21.52, 8703.21.53, 8703.21.54, 8703.21.55, 8703.21.62, 8703.21.64, 8703.21.73 8703.22.30, 8703.22.40, 8703.23.30, 8703.23.40, 8703.24.30, 8703.24.40, 8703.31.30, 8703.31.40, 8703.31.50, 8703.31.60, 8703.32.30, 8703.32.40, 8703.33.30, 8703.33.40 8703.40.13, 8703.40.14, 8703.40.15, 8703.40.16, 8703.40.21, 8703.40.22, 8703.40.25, 8703.40.26, 8703.40.33, 8703.40.34, 8703.40.43, 8703.40.44, 8703.40.63, 8703.40.64, 8703.40.83, 8703.40.84 8703.50.13, 8703.50.14, 8703.50.15, 8703.50.16, 8703.50.21, 8703.50.22, 8703.50.25, 8703.50.26, 8703.50.33, 8703.50.34, 8703.50.43, 8703.50.44, 8703.50.63, 8703.50.64, 8703.50.83, 8703.50.84 8703.60.13, 8703.60.14, 8703.60.15, 8703.60.16, 8703.60.21, 8703.60.22, 8703.60.25, 8703.60.26, 8703.60.33, 8703.60.34, 8703.60.43, 8703.60.44, 8703.60.63, 8703.60.64, 8703.60.83, 8703.60.84

SCHEDULE II: SAFETY MEASURES / STANDARDS (Contd.)

I No.	II HS Heading	III Safety Measure/ Standard			IV HS Codes Subject to Safety Measures / Standards
		Air Bags	Seat Belts	ABS	
					8703.70.13, 8703.70.14, 8703.70.15, 8703.70.16, 8703.70.21, 8703.70.22, 8703.70.25, 8703.70.26, 8703.70.33, 8703.70.34, 8703.70.43, 8703.70.44, 8703.70.63, 8703.70.64, 8703.70.83, 8703.70.84 8703.80.11, 8703.80.12
02 (ii)		-	C	*	8703.21.63, 8703.21.72, 8703.40.23, 8703.40.24, 8703.50.23, 8703.50.24, 8703.60.23, 8703.60.24, 8703.70.23, 8703.70.24, 8703.80 (Electric Quadricycle) *Refer the regulation 3(b) for the ABS requirement
03 (i)	87.04	C	C	C	8704.21.71, 8704.21.72, 8704.21.91, 8704.21.92, 8704.21.93, 8704.21.99 8704.31.71, 8704.31.72, 8704.31.91, 8704.31.92, 8704.31.93, 8704.31.99
03 (ii)		-	C	C	HS Codes classified under HS Heading 87.04 except HS Codes in 3(i), 3(iii) of Column IV and following HS Codes; 8704.21.21, 8704.21.22, 8704.31.21, 8704.31.22, 8704.31.23, 8704.90.10, 8704.90.20
03 (iii)		-	C	*	8704.21.41, 8704.21.42, 8704.21.43, 8704.21.44, 8704.21.61, 8704.21.62, 8704.21.63, 8704.21.64, 8704.21.65, 8704.21.66, 8704.21.67, 8704.21.68, 8704.31.41, 8704.31.42, 8704.31.43, 8704.31.44, 8704.31.61, 8704.31.62, 8704.31.63, 8704.31.64, 8704.31.65, 8704.31.66, 8704.31.67, 8704.31.68 *Refer the regulation 3(c) for the ABS requirement
04	87.05	-	C	C	HS Codes classified under HS Heading 87.05

(C – Comply with Safety Measures / Standards)

4. For the purpose of these Regulations

- (a) Importation of brand new motor vehicles, classifiable under the HS Chapter 87 shall carry a manufacturer's certificate issued by the manufacturer of such motor vehicles to the effect that the motor vehicles comply with the Vehicular Exhaust Emissions Standards and Safety Measures / Standards referred to above.

- (b) Importation of all motor vehicles other than brand new motor vehicles referred to in (a) above or a supplier is unable to produce a Manufacture Certificate for importation of a brand new vehicle, shall carry a Pre-shipment Inspection Certificate issued by Authorized Inspection Agencies appointed by the *Gazette (Extraordinary)* No.1804/17 dated 03rd April 2013 as amended from time to time to the effect that the motor vehicles comply with the Vehicular Exhaust Emissions Standards and Safety Measures / Standards referred to above.
- (c) In case the certificates furnished by manufacturer or authorized inspection agency are found to be containing false information contradicting the objective of these regulations, the Controller General shall consider to take legal action against such parties.
- (d) In case the importer is found to have furnished a forged Certificate, contradicting the objective of these regulations, the Controller General shall consider to take legal action against such party.

5. Manufacturer Certificate and Pre-shipment Inspection Certificate should be directly sent by the beneficiary/ negotiating bank to the Local bank where the valid Letters of Credit (L/C's) were opened.

6. Importation of motor vehicles, classifiable under the Chapter 87 of the Harmonized Description and Coding System shall only be made by Letters of Credit (LCs), which shall be established prior to shipment of such motor vehicles. The Emissions Standards and Safety Measures / Standards, specified in these regulations shall be included in the Letters of Credit as mandatory requirements to be complied with in importation of such motor vehicles.

7. The motor vehicles which do not comply with the said Vehicular Exhaust Emissions Standards and Safety Measures / Standards shall be re-exported by the importer(s) at his own cost.

8. Compliance with Vehicular Exhaust Emission Limits and Safety Measures / Standards shall not be required for Vintage Vehicles manufactured prior to 30th November 1956.

9. In the event of any issues arisen with regard to the applicability of the above regulations to any person or consignment, Controller General of Department of Imports and Exports (Control) may, at his discretion reserve the final decision on applicability of regulations

Notes:

- 1. **Seat Belt** - In the case of the seat belt, driver & the front passengers should have three point seat belt and the other passengers should have minimum two point seat belt where applicable.
- 2. **Air Bags** - Driver and front passengers should have Standard Air bags
- 3. **ABS** - All vehicles should be manufactured with Anti - Locking Breaking System

02 - 399